

## INDEPENDENT SOFTWARE & TECHNOLOGY SERVICES AGREEMENT

Executed pursuant to Turkish Code of Obligations (Art. 470 et seq.) and Law on Intellectual Property (Art. 52).

### CLIENT

**VentureWave Capital Ltd.**

legal@venturewave.io

+44 20 7946 0912

### CONTRACTOR

**Can Demir (Kıdemli Yazılım Mimarı)**

can.demir@devmail.com

+90 (532) 555 1234

### 1. Scope & Deliverables

**Cross-Border FinTech Payment Gateway & Microservices Platform:** Design, development, and production rollout of PCI-DSS compliant cross-border payment gateway microservices.

### 2. Milestone Schedule

- %30 (1. Aşama):** System Architecture, Database Modeling & Auth Layer (PostgreSQL schema design, Next.js 16 scaffolding, AES-256 data protection and RBAC auth.)
- %40 (2. Aşama):** Financial Analytics Engine & Reporting APIs (High-throughput data pipeline, webhook dispatchers and automated PDF/CSV export engine.)
- %30 (3. Aşama):** User Acceptance Testing (UAT), CI/CD Deployment & IP Transfer (Production deployment, FSEK Art. 52 statutory IP transfer deed and full repository handover.)

| STATUTORY TAX & PAYMENT BREAKDOWN TABLE |             |              | OFFICIAL SETTLEMENT                             |
|-----------------------------------------|-------------|--------------|-------------------------------------------------|
| Financial Item                          | Rate        | Amount       | Notice                                          |
| 1. Agreed Gross Service Fee             | Gross       | 18,500.00 \$ | Contractually agreed gross consideration        |
| 2. Income Tax Withholding (GVK 94)      | 0%          | -0.00 \$     | Remitted directly to tax office by Client       |
| 3. Net Professional Earnings            | Net         | 18,500.00 \$ | Contractor net take-home earnings (Gross - Tax) |
| 4. Value Added Tax (VAT)                | 0%          | +0.00 \$     | Fiduciary payment; remitted via VAT return      |
| 5. Direct Bank Wire Settlement          | Net + VAT   | 18,500.00 \$ | Net cash wired to Contractor IBAN account       |
| 6. Total Client Cash Outflow            | Gross + VAT | 18,500.00 \$ | Direct Wire + Tax Withholding Remittance        |

 **ANNEX-1: Objective Acceptance Criteria (TBK Art. 470/474)**

Pursuant to TBK Art. 474, non-defective acceptance is bound to the following objective conditions. Subjective rejection is barred.

| Phase | Acceptance Requirement                                                       | BDD Scenario                                                                                                                                                                                                   |
|-------|------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Faz 1 | User authentication, MFA, and RBAC must function end-to-end.                 | GIVEN Given a user enters valid email, password, and 2FA token<br>WHEN When the user clicks the login button<br>THEN Then a signed JWT session must be created and user redirected to authorized dashboard.    |
| Faz 2 | Financial reporting engine must export 100k records to CSV/PDF under 1.5s.   | GIVEN Given the database holds 100,000 transaction records<br>WHEN When the user triggers 'Download Period Report'<br>THEN Then a digitally signed PDF must stream within 1.5s without exceeding 40% CPU.      |
| Faz 3 | All source code must achieve 85%+ unit test coverage passing green on CI/CD. | GIVEN Given a release tag is pushed to the main branch<br>WHEN When lint and integration test suites run<br>THEN Then zero critical vulnerabilities must be detected and automated staging deployment succeed. |

 **ANNEX-2: Data Processing Addendum (KVKK Art. 12 & GDPR Art. 28 Compliant)**

Risk Tier: **MEDIUM (39/100)** | Breach SLA: **24h** | Sub-processor: **Written Consent Required**

| Data Categories                                                                                                                  | Technical Safeguards                                                                                                                              |
|----------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"><li>Identity &amp; Contact</li><li>Account &amp; Logs</li><li>Financial &amp; Orders</li></ul> | <ul style="list-style-type: none"><li>✓ TLS 1.3 In-Transit</li><li>✓ AES-256 At-Rest</li><li>✓ 2FA/MFA Required</li><li>✓ Audit Logging</li></ul> |

# ANNEX-3: Independent Contractor Safe Harbor Protocol

SAFE HARBOR (LOW RISK) (0/100)

Compliant with TBK Art. 470, Labor Law No. 4857 Art. 8 & SGK Law No. 5510

**Court of Cassation Risk Assessment:** Safe Harbor (Score: 0/100): The commercial relationship strictly conforms to TBK Art. 470 independent contract standards. Risk of disguised employment under Labor Law No. 4857 is minimal.

## 1. Legal Status & Rejection of Employment

The parties confirm this contract constitutes an independent Contract for Work under TBK Art. 470, strictly excluding any employment relationship under Labor Law No. 4857.

## 2. Schedule, Location & Methodology Autonomy

The Contractor autonomously dictates working hours and physical location. The Client shall not mandate daily schedules or surveillance software.

## 3. Equipment & Tool Autonomy (BYOD)

The Contractor provides all developer hardware and software independently (BYOD). Client environments serve exclusively for acceptance testing.

## 4. Absence of Managerial Hierarchy

The Client possesses no supervisory hierarchy over the Contractor. Oversight is strictly confined to deliverable BDD/DoD acceptance criteria.

## 5. Non-Exclusivity & Concurrent Client Freedom

The Contractor is entirely free to perform technical services for third parties concurrently without restriction.

## 6. Social Security (SGK 4/b) & Severance Exclusions

Contractor bears sole responsibility for SGK 4/b self-employed coverage and taxes. Claims for severance, notice pay, or paid leave are expressly waived.

## 7. Evidence Agreement & Jurisdiction

Pursuant to HMK Art. 193, disputes shall be submitted exclusively to the competent **Courts of İstanbul**.

## ANNEX-4: AI-ASSISTED CODE IP & WARRANTY PROTOCOL

PRISTINE\_IP\_SAFE (10/100)

**Statutory Bases:** 5846 s. FSEK m. 52, EU AI Act m. 50/53, **Evidence Status:** 6100 s. HMK m. 193 Münhasır Delil 6098 s. TBK m. 474

**Declared AI Tools:** GITHUB\_COPILOT, CLAUDE\_CODE, **Human-in-the-Loop:** Affirmed (Valid Assignment) CURSOR

**1. TRANSPARENCY & STATUTORY DISCLOSURE:** The Contractor warrants full disclosure of all generative AI tooling deployed in accordance with EU AI Act Art. 50 transparency obligations.

**2. HUMAN-IN-THE-LOOP & VALID IP ASSIGNMENT:** The architectural design and logic originate from human engineer intellect under FSEK Art. 1/B. All economic rights are irrevocably transferred pursuant to FSEK Art. 52.

**3. ANTI-COPYLEFT LICENSE HYGIENE:** The Contractor warrants the proprietary codebase free of viral copyleft (GPL/AGPL) contamination.

**4. ZERO DATA RETENTION (NO TRAINING):** Client trade secrets and schemas are strictly excluded from public AI training corpuses.

**5. DEFECT & HALLUCINATION WARRANTY (TBK ART. 474):** AI hallucinations and defects constitute contractor defects under statutory law, remediable at contractor cost.



### ANNEX-5: Cross-Border Software Export 100% Tax Incentive & Zero-VAT Protocol

GİB Kod 302

Pursuant to Law No. 7491 and Decree No. 11257, 100% of export revenues are deductible from taxable income, and invoiced at 0% VAT.

**Client Country:** Almanya (Yurt Dışı / Non-Resident)

**Place of Utilization:** Exclusively Outside Turkey (Export of Services)

**Tax Exemption Code:** 302 - Hizmet İhracatı (%0 KDV & %0 Stopaj)

**FX Repatriation & Evidentiary Proof:** Repatriation to Turkish bank verified prior to annual tax filing.

### 3. Statutory IP Rights Transfer (FSEK Art. 52)

Subject to full payment, all economic rights under FSEK Art. 21 (Adaptation), Art. 22 (Reproduction), Art. 23 (Distribution), Art. 24 (Performance), and Art. 25 (Communication to the Public) are exclusively transferred to the Client.

### 4. Inspection & Revisions

The Client shall complete inspection within 7 business days. Up to 2 revision rounds are included; scope creep requires a separate addendum.

## 5. Confidentiality, Warranty & Mediation

Confidentiality persists for 3 years. Defect warranty covers 30 days. Mandatory mediation applies prior to litigation; jurisdiction is Istanbul.

### DİJİTAL SÖZLEŞME GÜVENLİK MÜHRÜ (SHA-256):

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Document integrity verified via Operis deterministic cryptographic seal.

### İŞ SAHİBİ (MÜŞTERİ)

VentureWave Capital Ltd.

İmza / Kaşe: \_\_\_\_\_

Tarih: September 10, 2026

### YÜKLENİCİ (GELİŞTİRİCİ)

Can Demir (Kıdemli Yazılım Mimarı)

İmza / Kaşe: \_\_\_\_\_

Tarih: September 10, 2026